

**2024 COMMONWEALTH OF DOMINICA S.R.O. 1
CITIZENSHIP**

COMMONWEALTH OF DOMINICA

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COMMONWEALTH OF DOMINICA

STATUTORY RULES AND ORDERS NO.1 OF 2024.

REGULATIONS

MADE by the Minister under section 20 of the Commonwealth
of Dominica Citizenship Act, Chap 1:10.

(Gazetted 25th January, 2024.)

PRELIMINARY

1. These Regulations may be cited as the - Short title.

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CITIZENSHIP
BY INVESTMENT REGULATIONS, 2024.

2. In these Regulations, unless the context otherwise requires - Interpretation.

“Act” means the Commonwealth of Dominica Citizenship Act; Chap. 1:10.

“applicant” means a person who applies for Citizenship by
Investment;

“applicant requirements” means the formal and substantial
requirements that each applicant must meet as defined in
these Regulations;

“Approved Developer” means a person who is undertaking or
has been undertaking a development that has been ap-
proved by Cabinet as an Approved Project;

“approved due diligence agency” means an independent profes-
sional firm engaged in the business of conducting investi-
gations and checks as to the character, identity and

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activities of individuals, companies or other entities;

“Approved Project” means a real estate development or other development project that has been approved by Cabinet as a qualified project for Citizenship by Investment;

“authenticated translation” means a translation effected by either –

(a) a professional translator who is officially accredited to a court of law, a government agency, an international organisation, or similar official institution; or

(b) where effected in a country where there are no official accredited translators, a translation effected by a company whose role or business is effecting professional translations;

“Authorised Agent” means a person –

(a) licenced by the Cabinet who has paid the Authorised Agent’s fee under paragraph 1(1) of Schedule 1; and

(b) is authorised to act on behalf of the main applicant in relation to a Citizenship by Investment application;

“Cabinet” means the Cabinet of Ministers of the Government of Dominica;

“certified copy” means, subject to regulation 4(16), a photocopy certified by a notary public to be a true copy of the original;

“child” means a biological or legally adopted child of a main applicant or of the spouse of the main applicant;

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“dependant” means —

- (a) a spouse of the main applicant;
- (b) a child under eighteen years of age of the main applicant or the spouse of the main applicant;
- (c) a child of the main applicant or the spouse of the main applicant between eighteen and thirty years who is in attendance at a recognised institution of higher learning and fully supported by the main applicant or the spouse of the main applicant;
- (d) an unmarried daughter of the main applicant or the spouse of the main applicant who is under twenty-five years of age and is living with and fully supported by the main applicant or the spouse of the main applicant;
- (e) a child of the main applicant or the spouse of the main applicant who is eighteen years of age or older and physically or mentally challenged and who is fully supported by the main applicant or the spouse of the main applicant;
- (f) parents or grandparents of the main applicant or the spouse of the main applicant above the age of sixty-five years who are substantially supported by the main applicant or the spouse of the main applicant;

“direct monetary investment” means an investment made directly to the Government of the Commonwealth of Dominica for the purpose of citizenship by investment of an amount not less than the thresholds established in paragraph 1(3)(b) of Schedule 1;

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“Licenced Promoter” means a person who has entered into a contractual agreement within an Authorised Agent and has been authorised by Cabinet and has paid the Licenced Promoter fees under paragraph 1(2) (a) of Schedule 1, to operate as a Licenced Promoter for the purpose of marketing the Citizenship by Investment Programme to potential clients;

“main applicant” means the person who, either as a single applicant or as the head of a family –

(a) undertakes an investment for the purposes of these Regulations; and

(b) signs the relevant agreements and undertakings on behalf of his or her dependants;

“Minister” means the Minister responsible for matters relating to citizenship;

“police certificate” means a statement from a national law enforcement authority on the status of a person’s criminal record;

“Programme” means the Commonwealth of Dominica Citizenship by Investment Programme;

“real estate” includes -

(a) a parcel of land with building thereon;

(b) a fractional ownership in land; and

(c) shares in a land development;

“spouse” means the partner of the opposite sex by marriage in accordance with the Marriage Act, and the Marriage

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(Prohibited Degrees of Relationship) Act;

“Unit” means the Government office established by regulation 3 Chap. 35.02.
to –

- (a) administer the Citizenship by Investment Programme; and
- (b) process all applications submitted for Citizenship by Investment.

PART I

**CITIZENSHIP BY INVESTMENT UNIT AND
CITIZENSHIP BY INVESTMENT**

3. There is hereby established a Citizenship by Investment Unit that shall be responsible for – Establishment of Investment Unit.

- (a) administering the Citizenship by Investment Programme;
- (b) reviewing and processing all applications for Citizenship by Investment submitted to the Unit;
- (c) ensuring that all due diligence background checks are comprehensive and completed throughout the application process, including compliance with the mandatory interview requirements; and
- (d) providing sufficient information to justify any recommendation to the Minister to approve or deny an application for Citizenship by Investment.

4. (1) Any person who —

Qualifications, general requirements and procedures.

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- (a) is at least eighteen years of age;
- (b) has made an investment;
- (c) has certified in writing that if granted citizenship of Dominica he or she will not, within five years of the date of issue to him or her of a certificate of naturalisation otherwise than by marriage, change or seek to change his or her name; and
- (d) meets the other applicable requirements,

may apply as a main applicant to become a citizen of Dominica pursuant to section 8 of the Act.

(2) Applications shall be –

- (a) made on forms prescribed in accordance with regulation 12 (1); and
- (b) accompanied by original documentation or certified copies of documents.

(3) An application form shall be completed in English and any document submitted with the application shall be in English, or, where the original language of the document is not in English, the document shall be accompanied by an authenticated translation.

(4) All applications shall be submitted to the Unit by an Authorised Agent and shall be accompanied by payment or proof of payment of the fees prescribed in paragraph 1(3)(c) of Schedule 1.

(5) Where a translation of a birth, marriage or police certificate or passport biodata page is necessary, translations must be certified by the relevant government authority, Embassy

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or Consulate for the country where the documents originate.

(6) The main applicant shall provide a sworn affidavit of support for each dependant included in the application who is over the age of eighteen years, with the exception of his or her spouse, confirming that the dependant is supported by either the main applicant or the spouse of the main applicant.

(7) The main applicant is responsible for the completion and accuracy of the contents of each application form submitted by him or her and the following conditions shall be applicable –

- (a) the applicant must personally read the form and sign the certificate of truth on the form;
- (b) for a child who is below the age of eighteen years, both parents must read the form and sign the certificate of truth on the form on behalf of the child as the child's legal guardians; or
- (c) where one parent has sole custody of a child who is below the age of eighteen years, or where another person has legal guardianship of that child, that parent or person shall provide to the Unit the appropriate legal documentation to demonstrate that sole custody or guardianship was awarded to that parent or person by a court of law or other relevant authority, and that parent or person must read the form and sign the certificate of truth on the form on behalf of that child;
- (d) for a dependant aged eighteen years or over who lacks capacity to sign the form because of a mental disability or a physical disability that makes it impossible for that dependant to complete the forms himself or herself, the person with the legal right to act on behalf of that dependant must read

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the form and sign the certificate of truth on the form on behalf of that dependant and the appropriate legal documentation shall be provided to demonstrate that person's right to do so;

(e) for the fingerprint and photograph verification form and for the waiver of residence requirements form, each form shall also be completed, signed, and stamped by a registered fingerprinting officer or justice of the peace, notary public, or commissioner of oaths, as per the requirements of the form; and

(f) for the medical form, the form shall be completed, signed, and stamped by a registered medical practitioner.

(8) Where an applicant —

(a) makes a false statement or omits information requested on any of the forms, the citizenship application may be rejected;

(b) is subsequently found to have provided false or incorrect information, or concealed any material fact, the applicant may —

(i) be deprived of citizenship of Dominica pursuant to section 10(2) of the Act; and

(ii) if deprived and he or she has been issued a passport, his or her passport will be recalled and may be collected from him or her by any person authorised by the Minister for Immigration

(c) commits any of the acts referred to in paragraph

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(b) he or she may also be prosecuted pursuant to the provisions of the Perjury Act.

Chap. 10:30.

(9) Applications shall only be accepted and processed upon receipt by the Unit of all forms and other relevant documentation properly completed, signed and dated, and submission of proof that all specified fees have been paid.

(10) Every application that is submitted and every due diligence report received shall be examined by the Unit and every applicant shall attend an interview virtually or in person.

(11) The Unit shall, on a monthly basis, share with the Joint Regional Communications Centre of CARICOM IMPACS (JRCC) the names and bio data of all applicants who have been denied citizenship of Dominica.

(12) JRCC is authorised to share the information in subregulation (11) with any other Caribbean jurisdiction operating a Citizenship by Investment Programme.

(13) An applicant who is sixteen years of age and over shall undergo due diligence background checks before any decision is made in relation to his or her application.

(14) All background due diligence checks shall be commissioned by the Unit which shall engage one or more independent firms to conduct these checks in accordance with the requirements set and instructions given by the Unit.

(15) An applicant who is applying as a dependant of a main applicant between the age of eighteen and thirty years and who is currently in a recognised institution of higher learning, shall submit official transcripts from that recognised institution of higher learning or a letter signed and stamped by the competent authority confirming that applicant's existing enrolment at that institution of higher learning.

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(16) Where a notary public certifies a document to be a true copy of the original that document must be authenticated by –

- (a) an Apostille in accordance with the provisions of the Hague Convention of 5th October 1961 Abolishing the Requirement of Legalisation for Foreign Public Documents, in the case of countries that are parties to that Convention;
- (b) proof of the expiry date of the commission for that jurisdiction in the case of certification made by notaries public in the United States of America, Canada, and in countries that are not party to the Hague Apostille Convention.

Denial of citizenship.

5. (1) Subject to subregulation (2), an applicant who —

- (a) has a criminal record other than in respect to a minor offence;
- (b) is the subject of a criminal investigation of which he or she was aware or ought to have been aware and failed to disclose;
- (c) has been denied citizenship in any other country;
- (d) has been denied a visa to the European Union, United Kingdom, United States of America or Canada and has not subsequently obtained a visa to, or residence permit for that country;
- (e) has been denied a visa to a country with which Dominica has visa-free travel and has not subsequently obtained a visa to, or residence permit for that country;

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- (f) is deemed a potential security risk to Dominica or to any other country; or
- (g) has provided information which is false in any material respect on his or her application form;
- (h) is or has been involved in activity likely to bring disrepute to Dominica;

shall not be approved for citizenship of Dominica under the Citizenship by Investment Programme and if approved may be deprived of citizenship of Dominica pursuant to section 10 (2) or (3) of the Act.

(2) Where a person is deprived of his citizenship in accordance with subregulation (1) no refund shall be made of any fees, investments or other sums paid by or on behalf of that person.

(3) An applicant who has a criminal record or is the subject of a criminal investigation may be approved for citizenship where the offence which is the subject of the criminal record is a minor offence or the investigation is into a minor offence.

(4) A person who within five years of having been issued a certificate of naturalisation changes or seeks to change her/his name otherwise than by marriage may be deprived of Citizenship of Dominica pursuant to section 10(2) or (3) of the Act.

(5) A person who has after becoming naturalised been sentenced in any country to imprisonment for a term of not less than 12 months shall be deprived of citizenship of Dominica.

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PART II

**INVESTMENTS, INFORMATION, ENHANCED
DUE DILIGENCE**

Specific requirements for
approved investment.

6. (1) Where a person makes an investment or executes a binding purchase and sale agreement for real estate or an investment agreement with the developer of an Approved Project, an application for Citizenship by Investment may be submitted on his or her behalf through an Authorised Agent.

Schedule 1.

(2) The Unit shall not consider an application unless the investment or the purchase value of the real estate meets the minimum investment requirements in keeping with the threshold established in paragraph 2 of Schedule 1.

(3) Real estate that has been purchased that qualifies an applicant for citizenship under the Citizenship by Investment Programme shall not be resold unless a period of at least three years has elapsed from the grant of citizenship in respect of that purchase .

(4) Where real estate has already been the subject of a grant of citizenship that real estate shall not be eligible for use in a subsequent Citizenship by Investment application unless a period of at least five years has elapsed from the grant of that citizenship.

(5) An application for Citizenship by Investment shall be considered only after -

(a) all monies have been placed in an irrevocable escrow account with an Authorised Agent, a registered trust company or with an entity whose business is the provision of trust or custodial services; and

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(b) an Approved Project has been deemed to have commenced, which determination shall be made in accordance with guidelines published by the Unit.

(6) Where a person, being the holder of citizenship obtained through the Citizenship by Investment Programme, seeks to sell or use the real estate in contravention of subregulations (3) and (4), the following sanctions shall be applicable:

(a) that person shall have his or her citizenship revoked;

(b) that person may be disqualified from further participation in the Citizenship by Investment Programme; and

(c) any transaction purporting to sell that real estate shall be null and void, or if the transaction cannot be nullified or voided, damages shall be payable to the Government by that person.

(7) Where an application for Citizenship by Investment is denied the fees paid in accordance with paragraph 1(3)(c) of Schedule 1 shall not be refundable.

Schedule 1.

7.(1) Within three months of the submission of an application for Citizenship by Investment the Unit shall notify the Authorised Agent on behalf of the main applicant whether the application has been -

Notification.

(a) approved in principle;

(b) delayed for cause and is still being processed; or

(c) denied.

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(2) Not later than thirty days after the date of a notification of approval in principle pursuant to subregulation (1) and before the grant of citizenship can occur, the main applicant shall be required to show that -

- (a) in the case of the investment in real estate that the full and unencumbered title to the relevant property has been transferred to him or her, directly or indirectly through a local company, foundation or other approved entity;
- (b) in the case of another Approved Project, that the minimum investment has been deposited into a designated escrow account;
- (c) in the case of a direct monetary investment that the full investment has been deposited with the Government of the Commonwealth of Dominica; and
- (d) that all prescribed government fees have been paid.

(3) Beneficial ownership of the relevant property through a company is permissible only where the company -

- (a) has issued all of its authorised shares to the main applicant;
- (b) is established and maintained under the laws of Dominica;
- (c) is not an exempt or offshore entity; and
- (d) submits through the main applicant irrefutable evidence certified by the Registrar of Companies as to its beneficial ownership.

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8. (1) The Minister may appoint a committee to review an application and interview an applicant.

Review and interview process.

(2) Where the Minister appoints a review panel, the panel may request the applicant to appear in person before it to be interviewed.

(3) The interview will normally be conducted in Dominica, however, at the request of the applicant and where considered by the Unit to be appropriate, provision may be made for the interview to be conducted elsewhere at the expense of the applicant.

(4) If an applicant fails or refuses to attend an interview pursuant to Regulations 4(10) and 8(2) his application for citizenship under these Regulations shall be refused.

(5) A committee that is appointed pursuant to subregulation (1) shall be comprised of at least three of the following persons –

- (a) the Attorney General or a Senior representative from the Attorney General's Chambers;
- (b) the Director, Deputy Director or a Senior Examiner of the Citizenship by Investment Unit, or the Financial Secretary;
- (c) the Chief of Police, Head of Special Branch or other police officer designated by the Minister;
- (d) the Permanent Secretary or an officer designated by the Permanent Secretary in the Ministry with responsibility for immigration; and
- (e) any other person duly authorised by the Minister.

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(6) Where the Attorney General sits on an interview committee he shall be the Chairman of that committee.

(7) In the absence of the Attorney General, the Chairman shall be the most senior diplomatic, consular or government officer who is a member of the committee.

(8) The committee shall make a recommendation to the Minister based on its findings in relation to the application under review.

(9) Thereafter the Minister shall promptly consider the recommendation and as he considers appropriate approve or disapprove the application.

Enhanced due diligence.

9. (1) The Unit shall conduct an enhanced due diligence background check on applicants named in an application for citizenship under these Regulations, where the main applicant or any of his or her dependants is a citizen of a specified country or region.

(2) In conducting an enhanced due diligence background check under subregulation (1), the Unit shall –

(a) require the main applicant and all dependants who are sixteen years of age and over to attend an interview in accordance with regulations 4(10) and 8(2); and

(b) mandate one or more professional firms to conduct enhanced due diligence background checks under regulation 4(14) on the main applicant and all dependants aged twelve and over.

(3) An interview under subregulation (2)(a) may be conducted in person or by virtual means.

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(4) The Unit shall not consider an application for citizenship under these Regulations where the main applicant or any of his or her dependants is a citizen of a specified country or region unless –

- (a) the Unit is satisfied upon conducting an enhanced due diligence background check under subregulation (1) that the main applicant and all of his or her dependants pose no actual or potential threat to the national security or interests of the Commonwealth of Dominica or any other jurisdiction;
- (b) the main applicant has paid the following enhanced due diligence background check fees:
 - (i) twenty-five thousand United States dollars for the main applicant;
 - (ii) fifteen thousand United States dollars for the spouse;
 - (iii) fifteen thousand United States dollars for each dependant sixteen years of age and over; and
 - (iv) ten thousand United States dollars for each dependant twelve to fifteen years of age.

(5) Where the main applicant or any of his or her dependants who is a citizen of a specified country or region fails or refuses to satisfy any of the conditions specified in subregulations (2) and (4) their application for citizenship under these Regulations shall be refused.

(6) The Minister may, by Notice published in the Gazette, specify a country or region in relation to which this regulation applies.

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(7) For the purposes of this regulation “specified country or region” means a country or region specified in a Notice published under subregulation (6)”.

PART III

AGENTS AND PROMOTERS

Authorised Agents.

10. (1) Each Authorised Agent shall:

- (a) sign a written agreement with the Government of the Commonwealth of Dominica, among other things, agreeing to adhere to the terms and conditions of the Citizenship by Investment Programme;
- (b) prior to being granted a new licence be reviewed by the Unit as to performance and suitability for continued involvement with the Programme;
- (c) be deemed responsible for all promotion, advertisement or publication in relation to Citizenship by Investment published or disseminated publicly by any sub-agent, Licenced Promoter, media outlet, entity or person on behalf of or in conjunction with the said Authorised Agent;
- (d) take reasonable steps to satisfy itself as to the identity and bona fides of each Licenced Promoter with whom the Authorised Agent enters into agreement, engages or acts in conjunction with;
- (e) not engage or use any person or entity as a

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promoter who has not been registered and licenced in respect of whom the appropriate annual fee has not been paid;

- (f) pay or cause to be paid a fee in accordance with paragraph 1(2) of Schedule 1 in respect to each Licenced Promoter it engages, collaborates with or otherwise uses in relation to the Citizenship by Investment Programme;

(2) To be eligible for designation as an Authorised Agent pursuant to subregulation (4), a person or entity must -

- (a) be a citizen of Dominica;
- (b) reside in Dominica or have its main office registered in Dominica with a minimum of three staff;
- (c) must undergo due diligence background checks by independent due diligence firms and the JRCC,

to maintain such designation pursuant to subregulation (4).

(3) The provisions of regulation 5(1) (a) to (h) shall apply to all agents

(4) A person or entity who wishes to act as an Authorised Agent of applicants with respect to an application for Citizenship by Investment of the Commonwealth of Dominica must submit their application in person to the Unit to be designated as an Authorised Agent, providing the following –

- (a) proof of registration or certificate of incorporation (if applicable);
- (b) copy of their business licence (if applicable);

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(c) the full name and address and two government-issued photographic identification documents issued by a single government for all business owners, partners or shareholders and directors of the entity;

(d) a copy of the approved anti-money laundering and anti-terrorist financing policy of the entity, which shall include know-your-client (KYC) policies; and

(e) payment of a non-refundable initial application fee pursuant to paragraph 1 (1)(a) of Schedule 1.

Schedule 1.

(5) An Authorised Agent who wishes to maintain its status as an Authorised Agent must:

(a) apply to the Unit pursuant to regulation 10(4); and

(b) pay the annual renewal fee pursuant to paragraph 1(1)(b) of Schedule 1 on or before the 1st day of January each year.

Schedule 1.

(6) A person or entity shall not qualify as an Authorised Agent if any of its business owners, partners, shareholders or directors is –

(a) a member of Parliament, or a spouse, partner, child, parent or sibling of a member of Parliament; or

(b) a member of the Unit, or a spouse, partner, child, parent or sibling of a member of the Unit; or

(c) convicted of a criminal offence involving fraud,

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money laundering, or other financial crimes, or being investigated for fraud, money laundering or other financial crimes in the Commonwealth of Dominica or any other country.

11. (1) To be eligible for designation as a Licenced Promoter a person or entity who has entered into a contractual agreement in writing with an Authorised Agent must submit their application in person to the Unit and -

Licenced Promoters.

- (a) undergo due diligence background checks by diligence firms and the JRCC;
- (b) provide the following:
 - (i) proof of registration or certificate of incorporation (if applicable);
 - (ii) copy of the business licence (if applicable);
 - (iii) the full names and two government-issued photographic identification documents for all business owners, partners or shareholders and directors of the entity; and
 - (iv) a copy of the approved anti-money laundering and anti-terrorist financing policy of the entity, which shall include know-your-client (KYC) policies; and
 - (v) payment of a non-refundable application fee pursuant to paragraph 1(2)(a) of Schedule 1.

Schedule 1.

(2) The provisions of regulation 5(1)(a) to (h) apply to all Licenced Promoters.

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(3) A promoter who wishes to maintain the status of a Licenced Promoter must:

- (a) undergo independent due diligence background checks by diligence firms and the JRCC;
- (b) apply to the Unit under subregulation (1);
- (c) provide evidence of a bi-annual visit to Dominica by an authorised representative of the Licenced Promoter;
- (d) pay the annual re-licencing fee pursuant to paragraph 1(2)(b) of Schedule 1 on or before the 1st day of January each year; and
- (e) pay a penalty equivalent to ten percent of the annual licence if the licence is paid after the date specified in subregulation (2)(c).

Schedule 1.

(4) A person or entity shall not qualify as a Licenced Promoter if any of its business owners, partners, shareholders or directors is –

- (a) a member of Parliament, or a spouse, partner, or child of a member of Parliament; or
- (b) a member of the Unit, or a spouse, partner, child, or sibling of a member of the Unit; or
- (c) convicted of a criminal offence involving fraud, money laundering, or other financial crimes, or being investigated for fraud, money laundering or other financial crimes in any country.

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PART IV

MISCELLANEOUS

12. (1) The Minister may issue guidelines and authorise forms, as appropriate, to facilitate the better implementation of the Citizenship by Investment Programme as set out in these Regulations. Guidelines.

(2) The Minister may issue guidelines to Authorised Agents, Licenced Promoters and Approved Developers requiring standards and other obligations to facilitate the better execution of the Citizenship by Investment Programme and requirements set out in these Regulations.

(3) Guidelines made under these Regulations shall be binding on the Authorised Agents, Licenced Promoters and Approved Developers and their employees and associates.

(4) Authorised Agents, Licenced Promoters and Approved Developers are personally responsible for ensuring that they impose the same standards, requirements and obligations application in terms of these Regulations on their employees, assistants and associates.

13. (1) No information, promotion, advertisement or publication in relation to Citizenship by Investment shall be published or disseminated publicly on the behalf of an Authorised Agent, Licenced Promoter or Approved Developer by any media or by any person unless in compliance with the Promotional Guidelines specified in Schedule 2. Promotional
Restrictions.

Schedule 2.

(2) A person who contravenes the provisions of sub-regulation (1) shall -

(a) on summary conviction, be liable to a fine not

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exceeding one thousand dollars;

- (b) in the case of an Approved Developer, where he or she has proposed a project that has already been approved, be liable to have the status of that Approved Project suspended or revoked by the Minister;
- (c) in the case of an Authorised Agent be liable to have their authorisation to act as an Authorised Agent in respect to the Citizenship by Investment Programme revoked or suspended and to be listed on the Government of Dominica website as a person who is not authorised to submit to Unit an application for Citizenship by Investment on behalf of an applicant;
- (d) in the case of any Licenced Promoter be liable to have his licence revoked or suspended and to be listed on the Government of Dominica website as a person who is not licenced to act as a Licenced Promoter for the Citizenship by Investment Programme.

(3) Any promotional material, whether print or digital, distributed by an Authorised Agent, Licenced Promoter or Approved Developer with regard to the Citizenship by Investment Programme and the provision of that Authorised Agent, Licenced Promoters or Approved Developers' services with respect to the Programme must clearly display a valid licence number.

Compliance with
Programme.

14. Each Authorised Agent, Licenced Promoter, Approved Developer or any other authorised person or entity involved with the Citizenship by Investment Programme shall comply with the terms and conditions of the Programme as set out in these Regulations, and supporting guidelines issued.

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15. The Commonwealth of Dominica Citizenship by Investment Regulations 2023 are repealed.

Repeal
S.R.O. 14
of 2023.

SCHEDULE 1
(Regulations 2, 4(4), 6(2))

**FEES AND CONTRIBUTIONS, APPROVED INVEST-
MENT, AUTHORISED AGENTS AND LICENCED
PROMOTERS,
POST CITIZENSHIP ADDITIONS**

1. Fees and contributions

(1) Every Authorised Agent shall -

- (a) first register with the Citizenship by Investment Unit and pay a fee of twenty thousand United States dollars before he may file applications with the Unit;
- (b) pay an annual renewal fee of fifteen thousand five hundred United States dollars to maintain their licence; and

such fees are payable by January 1st of each year commencing in 2024 and may be prorated in respect of new applications submitted after January 1st in any year.

(2) Licenced Promoters must –

- (a) first enter into a contractual agreement with an Authorised Agent and then register with the Citizenship by Investment Unit and pay a fee of

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twenty thousand United States dollars before they are allowed to market the Citizenship by Investment Programme to potential clients; and

- (b)* pay an annual renewal fee of fifteen thousand United States dollars to maintain their licence; and

such fees are payable by January 1st of each year commencing in 2024 and may be prorated in respect of new applications submitted after January 1st in any year.

(3) The following shall be payable to the Government of the Commonwealth of Dominica on an application for Citizenship by Investment or other approved project:

- (a)* on approval in principle of an application through a real estate investment or other approved project

(i) twenty-five thousand United States dollars for the main applicant;

(ii) thirty-five thousand United States dollars for a main applicant and up to three dependants;

(iii) fifty thousand United States dollars for the main applicant and up to five dependants;

(iv) twenty-five thousand United States dollars for any additional qualified dependant;

- (b)* to qualify persons through a direct monetary investment an amount of-

(i) one hundred thousand United States dollars for the main applicant;

(ii) one hundred and fifty thousand United States

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dollars for a main applicant and spouse;

(iii) one hundred and seventy-five thousand United States dollars for a main applicant and up to three qualifying dependants;

(iv) twenty-five thousand United States dollars for any additional dependant under the age of eighteen;

(v) fifty thousand United States dollars for any additional dependant eighteen years of age or older;”

(c) on submission of an application a minimum fee of -

(i) seven thousand five hundred United States dollars for due diligence background checks on the main applicant;

(ii) four thousand United States dollars for due diligence background checks on each applicant who is above the age of sixteen;

(iii) one thousand United States dollars interview fee per interview; and

(iv) one thousand United States dollars processing fee per application;

(d) In the case of applications subject to the enhanced due diligence process pursuant to regulation 9, the enhanced due diligence fees specified in regulation 9(4)(b) are payable in replacement of the fees specified in subparagraphs (i) to (iii) above.

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2. Approved Project.

(1) The minimum investment required is two hundred thousand United States dollars for each main applicant.

(2) Two or more applicants may apply for Citizenship by Investment together by investing in an Approved Project, provided that each main applicant contributes the minimum investment of two hundred thousand United States dollars towards the investment.

3. Post Citizenship Additions.

(1) A main applicant who obtained citizenship through the Programme may apply to register as a naturalised citizen of the Commonwealth of Dominica a child under eighteen years of age born to or adopted by the main applicant not more than five years after the main applicant obtained citizenship.

(2) To register a child under subparagraph (1), the following applicable processing fee shall be payable to the Government of the Commonwealth of Dominica:

- (a) ten thousand United States dollars for a child up to five years of age;
- (b) fifteen thousand United States dollars for a child aged six to seventeen years of age: and
- (c) a child aged sixteen or seventeen years of age will be subject to a fee of four thousand United State dollars for due diligence checks and a fee of one thousand United States dollars for mandatory interview.

(3) A person who obtained citizenship through the Programme may make an application with respect to a spouse to whom that person was not married at the time the original

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application was made.

(4) To qualify a spouse for citizenship under subparagraph (3), the following shall be payable to the Government of the Commonwealth of Dominica –

- (a) seventy-five thousand United States dollars for the spouse;
- (b) one thousand United States dollars for processing fee;
- (c) four thousand United States dollars for due diligence background checks on the spouse;
- (d) seven thousand five hundred United States dollars for due diligence background checks on the original applicant for an application submitted more than one year after the date of submission of the original application; and
- (e) one thousand United States dollars for the mandatory interview.

(5) A person who applied for citizenship by investment as a main applicant and obtained citizenship through the Programme may make an application in respect to a dependant who did not form part of that person's original application and who was a dependant at the time the original application was made.

(6) To qualify a dependant for citizenship under subparagraph (5), the following shall be payable to the Government of the Commonwealth of Dominica –

- (a) seventy-five thousand United States dollars for the spouse;

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- (b) fifty thousand United States dollars for each dependant other than the spouse of the main applicant;
- (c) one thousand United States dollars for processing fee;
- (d) seven thousand, five hundred United States dollars for due diligence background checks on the original main applicant for an application submitted more than one year after the date of submission of the original application;
- (e) four thousand United States dollars for due diligence background checks on each dependant who is sixteen years or over; and
- (f) one thousand United States dollars for the mandatory interview.

(7) Notwithstanding subparagraph (6), to qualify a dependant for citizenship under subparagraph (5), the following shall be payable to the Government of the Commonwealth of Dominica where an application is made within a period of one year from the granting of citizenship –

- (a) fifty thousand United States dollars for the spouse;
- (b) twenty-five thousand United States dollars for each dependant other than the spouse of the main applicant
- (c) one thousand United States dollars for processing fee;

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- (d) seven thousand five hundred United States dollars for due diligence background checks on the original main applicant for an application submitted more than one year after the date of submission of the original application;
 - (e) four thousand United States dollars for due diligence background checks on each dependant who is sixteen years or over; and
 - (f) one thousand United States dollars for the mandatory interview.
- (8) The main applicant shall pay a fee of five hundred United States dollars in respect of and prior to the issuing of each certificate of naturalisation to be issued by the Unit in connection with his or her application.

SCHEDULE 2
(Regulations 13(1))

PROMOTIONAL GUIDELINES

The publication, dissemination and advertisement of information and promotions of the Citizenship by Investment Programme shall be subject to the following Promotional Guidelines:

- (1) It is prohibited to reference or any publication or content used, visa-free travel to specific countries, territories, and regions with which a Dominican passport holder may travel to without needing to first apply for a visa.
- (2) It is prohibited to claim that an applicant may receive citizenship through the Programme at investment costs that are

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lower than the minimum amount prescribed in Schedule 1 of these Regulations.

(3) It is prohibited to display or publish images of the passport of Dominica or Certificate of Naturalisation.

(4) It is prohibited to use “sale of passports” or similar terminology (including “citizenship sale”, “buying passport”, “purchasing passports”, “paying for passports”).

(5) It is prohibited to promote or advertise the Programme by using mass texts, text blasts, push messages, and other similar alerts via cell phone, telephone, and social media with text of messaging services.

(6) It is prohibited to falsely claim that the grant of a Dominican passport is part of the process of the Programme.

(7) It is prohibited to use images of Government officials or the Unit Head to promote the Programme without the written approval of the Government.

(8) It is prohibited to suggest in any manner whatsoever that you may affect the decision-making process of the Government with respect to applications, including processing times.

(9) It is prohibited to state the number of applicants who were granted citizenship through the Programme and the country of origin of those applicants, unless this information is formally published by the Government.

(10) It is prohibited to promote the Programme by falsely associating “Special Offers” or “Special Discounts” to the Programme.

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(11) It is prohibited to compare the Programme with similar programmes through information that extends beyond precise fact and deliberately misrepresents details of the Programme that are not in line with those mandated by law, Government guidance or the information on the website of the Unit.

Made this 22nd day of January, 2024.

MIRIAM BLANCHARD
Minister for Citizenship

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